

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

ANGEL CORRETJER,

Purchased:

Plaintiff,

Plaintiff designates

BRONX

County as the place of trial

- against -

The basis of the venue is

CPLR 504

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KEY
MATIASCASTILLO (shield #21571) and JOHN-JANE
DOE'S 1-4 (names being fictitious as they are presently
unknown who are intended to be other NYPD police
officers responsible for Bronx County arrest #B2167315)

SUMMONS

Plaintiff(s) resides at
48 West Pond Road
Perth Amboy, NJ 08861

Defendant.

To the above named Defendants

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated, New York, New York
June 28, 2022

Yours etc.,

Defendant's address:

THE CITY OF NEW YORK

100 Church Street, New York, NY 10007

THE NEW YORK CITY POLICE DEPARTMENT

One Police Plaza, New York, NY 10007

C/O The City of New York

100 Church Street, New York, New York 10007

POLICE OFFICER KEY MATIASCASTILLONYPD 49th Precinct, 2121 Eastchester Road, Bronx, NY 10461

One Police Plaza, New York, NY 10007

C/O The City of New York

100 Church Street, New York, NY 10007

ROBERT J. EPSTEIN, ESQ.

Attorney(s) for Plaintiff(s)

Post Office Address

41 Bedford Street, Suite 4C

New York, New York 10014

(212) 240-9470

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

ANGEL CORRETJER,

X

**VERIFIED
COMPLAINT**

Plaintiff,

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KEY
MATIASCASTILLO (shield #21571) and JOHN-JANE
DOE'S 1-4 (names being fictitious as they are presently
unknown who are intended to be other NYPD police
officers responsible for Bronx County arrest #B2167315)

Defendants,

X

PLAINTIFF, complaining of the defendants by his attorney ROBERT J. EPSTEIN, ESQ.,
respectfully alleges upon information and belief, at all times hereinafter mentioned, as follows:

1. Plaintiff's name is ANGEL CORRETJER.
2. Plaintiff resides at 48 West Pond Road, in the County of Middlesex, State of New Jersey, and is a citizen of the United States of America.
3. That at all times hereinafter mentioned, defendant THE CITY OF NEW YORK (hereinafter, "CITY") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned, defendant CITY maintains a principal office and place of business at the Municipal Building, County of New York, City of New York, State of New York.
5. That at all times hereinafter mentioned, defendant THE NEW YORK CITY POLICE DEPARTMENT (hereinafter, "NYPD") was and still is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

6. That at all times hereinafter mentioned, defendant NYPD maintains a principal office and place of business at the One Police Plaza, County of New York, City of New York, State of New York.

7. That at all times hereinafter mentioned, the defendant, CITY, its agents, servants, employees operated, maintained and controlled defendant NYPD, including all the police officers and personnel thereof.

8. That at all times hereinafter mentioned, NYPD, its agents servants and employees supervised, maintained and controlled its police officers and personnel.

9. That at all times hereinafter mentioned defendant KEY MATIASCASTILLO (shield #21571) was and is a NYPD a Police officer assigned to the 49th precinct responsible for the arrest of plaintiff ANGEL CORRETJER under Bronx County arrest #B2167315 while employed by and acting under the color of authority of defendants CITY and/or NYPD who caused and/or contributed to the arrest, detention, confinement, imprisonment, and prosecution of plaintiff ANGEL CORRETJER.

10. That at all times hereinafter mentioned defendants JOHN/JANE DOE'S 1-4 whose exact identities are unknown to plaintiff, are intended to be the Police Officers and/or law enforcement officials responsible for the arrest of plaintiff ANGEL CORRETJER under Bronx County arrest #B2167315 while employed by and acting under the color of authority of defendants CITY and/or NYPD who caused and/or contributed to the arrest, detention, confinement, imprisonment, and prosecution of plaintiff ANGEL CORRETJER.

11. Prior to the commencement of this action, and within ninety (90) days after the happening of this occurrence, on or about the 29th day of September 2021, plaintiff served a Notice of Claim, in writing, upon defendant CITY.

12. Although more than thirty (30) days have elapsed since the service of said Notice of Claim and intention to commence an action, defendant CITY has failed, neglected and refused to pay said claim or adjust the same.

13. Defendant CITY required plaintiff to appear and to submit to an examination, pursuant to General Obligations Law Section 50-h, and plaintiff did so appear and did submit to such an examination on the 3rd day of November 2021.

14. This action is commenced within the time prescribed by law.

AS AND FOR A FIRST CAUSE OF ACTION

15. Plaintiff repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", inclusive, with the same force and effect as if more fully set forth at length herein.

16. On or about the 3rd day of July, 2021, and prior and subsequent thereto, plaintiff ANGEL CORRETJER was lawfully operating his motor vehicle near the intersection of Boston Road and Pelham Parkway, County of Bronx, State of New York.

17. On or about the 3rd day of July, 2021, and prior and subsequent thereto, while plaintiff ANGEL CORRETJER was lawfully operating his motor vehicle near the intersection of Boston Road and Pelham Parkway, County of Bronx, State of New York plaintiff was stopped, detained and arrested by the NYPD police officers and then taken and transported by NYPD from said location and jailed at including the 49th Precinct located in the County of Bronx, City of New York, State of New York under Bronx County arrest #B21617315, without any valid right or grounds therefore.

18. On or about the 3rd day of July, 2021, and prior and subsequent thereto, the defendants their agents, servants and employees acting within the scope and authority of their

employment and office, wrongfully and falsely accused, arrested, detained and imprisoned plaintiff ANGEL CORRETJER.

19. That the said arrest and imprisonment of plaintiff ANGEL CORRETJER, was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without any reasonable cause, or belief, that the plaintiff ANGEL CORRETJER was in fact guilty of such crimes.

20. That the said arrest of the plaintiff ANGEL CORRETJER was caused, allowed and permitted by the defendants, their agents, servants and/or employees, wrongfully, unlawfully, against the plaintiffs wishes, without probable or reasonable cause on the charges made.

21. On or about the 3rd day of July, 2021, and prior and subsequent thereto, the defendants, their agents, servants and/or employees falsely arrested the plaintiff ANGEL CORRETJER, compelled him to go with New York City Police officers pursuant to the instruction and will of the defendants, detained, confined, jailed and imprisoned plaintiff ANGEL CORRETJER, at detention and/or jail premises and/or facilities in the County of Bronx, State of New York and continued to detain, imprison and jail the plaintiff ANGEL CORRETJER, including the 49th Precinct located in the County of Bronx, City of New York, State of New York.

22. That said arrest and imprisonment and prosecution of the plaintiff ANGEL CORRETJER was malicious, unlawful and without justification, and was a false arrest and imprisonment and prosecution.

23. That defendants acted in bad faith and without proper legal cause in committing the aforesaid arrest and imprisonment and prosecution of plaintiff ANGEL CORRETJER.

24. At the time of defendant's unlawful arrest and imprisonment, plaintiff ANGEL CORRETJER had not committed or attempted to commit any illegal act.

25. On or about the 4th day of July, 2021 defendants issued a desk appearance ticket, number 049-04183, requiring plaintiff to be present, report and to appear in Court on July 23, 2021 for further and continued prosecution of the charges for which he was wickedly, falsely and maliciously accused, arrested, detained, jailed.

26. On or about the 4th day of July, 2021 defendants released plaintiff from physical custody and jail with active and pending charges and continued prosecution for purported crimes and/or violations of law with the issuance of the aforesaid desk appearance ticket, number 049-04183.

27. On or about the 23rd day of July, 2021, plaintiff ANGEL CORRETJER appeared in Criminal Court, Bronx County as mandated and required under the aforesaid desk appearance ticket, number 049-04183.

28. On or about the 23rd day of July, 2021 the Office of the District Attorney of Bronx County issued a letter declining the continued prosecution of plaintiff ANGEL CORRETJER arising from Bronx County arrest #B2167315.

29. At the time of plaintiff ANGEL CORRETJER's unlawful arrest, imprisonment, and prosecution, the defendants knew or should have known, through the exercise of proper procedure and reasonable investigation, that the aforementioned arrest and imprisonment, accusation, charge and prosecution was false and without proper legal cause or justification.

30. That the aforesaid arrest and imprisonment and prosecution was made by defendants with knowledge of and/or negligent and/or reckless disregard of the material falseness of the underlying complaints alleged.

31. That as a result of the aforesaid accusations made by the defendants, their agents, servants and employees, acting under the scope of their office and within the scope of their

authority, plaintiff, ANGEL CORRETJER was made falsely, publicly, wickedly and maliciously arrested, accused, charged, jailed and prosecuted and improperly held in custody by defendants.

32. Commencing on or about the 3rd day of July, 2021, and prior and subsequent thereto, defendants, their agents, servants and/or employees and/or agencies, intended to cause the arrest, detention and imprisonment and prosecution of the plaintiff; plaintiff was conscious of the said arrest, detention, and imprisonment and prosecution; and that said arrest, detention and imprisonment and prosecution was not otherwise privileged.

33. That commencing on or about the 3rd day of July, 2021, and prior and subsequent thereto, plaintiff ANGEL CORRETJER was falsely arrested, falsely detained, falsely imprisoned, wrongfully taken into custody, improperly and excessively searched, and falsely and maliciously accused and prosecuted, by reason of the acts, conduct and/or negligence of the defendants, their agents servants and/or employees and police officers; in failing to adequately hire, train, monitor, evaluate and/or supervise its personnel; in improperly causing, permitting and/or allowing agents, servants and/or employees, and each of them separately, and in concert, to act under color and pretense of law, and engage in the reckless, careless and negligent conduct to the injury and detriment of the plaintiff ANGEL CORRETJER; in improperly depriving plaintiff of the rights, privileges and immunities secured to plaintiff by the Constitution of the United States of America and the Amendments thereto, the laws of the United States of America, the Constitution of the State of New York and local laws; in causing, allowing and/or permitting unwarranted use of force against plaintiff; in using excessive force upon the plaintiff; in failing to utilize handcuffs in a proper and safe manner; in negligently affixing handcuffs; in affixing, closing and/or securing handcuffs too tightly to plaintiff's wrists; in negligently causing physical injury and emotional distress to plaintiff; in failing to provide for the safety and well being of the plaintiff while in

custody, held, confined and/or imprisoned; in exposing, subjecting and/or placing plaintiff in substandard, unlawful, and/or dangerous and/or unsafe circumstances, places and/or conditions; in failing to provide necessary security, aid and/or protection; in subjecting this plaintiff to physical, emotional and/or verbal abuse; in causing, permitting and/or allowing this plaintiff to be subjected to emotional distress; in violating this plaintiff's constitutional rights; in failing to provide for basic human needs; in failing to provide adequate and sufficient supervision and/or control over their agencies and/or their agents, servants and/or employees and their police officers and/or personnel; in failing to maintain a proper, adequate, safe, and sufficiently equipped and maintained, detention and/or jail premises and/or facilities; in jailing and/or confining this plaintiff in such a manner to expose him to unsafe, hazardous, harmful and substandard conditions; in placing this plaintiff in real and actual danger and at risk of actual injury, distress, harm and peril; in failing to maintain and provide proper, safe and secure detention and/or jail premises and/or facilities; in failing to implement proper standards for the security and safety for detention and/or jail premises and/or facilities; in failing to provide proper protections and security to this plaintiff at detention and/or jail premises and/or facilities; in failing to implement proper standards for the security and safety for detention and/or jail premises and/or facilities; in failing to exercise reasonable care for the protection and safety of this plaintiff while he was at defendant's detention and/or jail premises and/or facilities and under the defendant's exclusive custody, care and/or control; in causing, creating, permitting and allowing a defective, dangerous, hazardous and otherwise unsafe conditions; in failing to remedy, repair, correct and/or remove the dangerous, hazardous and unsafe conditions complained of, despite notice thereof; in failing to maintain a reasonable degree of safety at said detention and/or jail premises and/or facilities; in violating this plaintiff's constitutional rights including, the right of due process, protection against unreasonable search and

seizure and other civil rights guaranteed to person under, and by virtue of, the Constitution of the United States of America and the State of New York; in hiring and employing law enforcement personnel who make arrests without proper legal cause therefor; in allowing or permitting its personnel to improperly effectuate arrest; in failing to have its personnel properly assess the circumstances before making an arrest; in manufacturing false charges and allegations against the plaintiff; in failing to provide, keep and/or maintain proper paperwork, records and/or reports; in failing to properly supervise police officers and other personnel; in having no reasonable and/or valid legal cause to believe that plaintiff committed alleged crimes under the facts and circumstances of this case; in failing to act as reasonably prudent persons would have acted under the circumstances in spite of their knowledge, both actual and constructive, that plaintiff did not commit a crime; in failing to properly thoroughly investigate the facts and circumstances surrounding the underlying allegations, complaints and/or alleged incident; in improperly and maliciously charging, arresting, confining, imprisoning and prosecuting this plaintiff without proper or legal basis, cause or justification; in failing to employ and/or hire competent and skilled police officers and other personnel; in improperly training their police officers and other personnel; in failing to exercise reasonable care in the selection of police officers and other personnel; in allowing police officers and other personnel to continue working as police officers when defendants, knew or should have known that they were not properly qualified, trained and/or competent to perform the duties required; in failing to properly and periodically review performance, credentials and/or adequacy of agents, servants, and/or employees, and police officers; in failing to properly hire, screen, train and/or supervise, agents, servants, and/or employees, and police officers; in failing to provide proper and/or sufficiently trained, skilled, competent, qualified and/or trained agents, servants, and/or employees, and police officers and

more particularly the acting, investigating and arresting police officers; in violating Federal, State and local laws, rules and regulations; in violating laws, rules and regulations; in failing to comply with and abide by internal rules and regulations; in violating all applicable laws, rules, regulations and ordinances; in violating Federal and New York State constitutional laws, rules and standards; in violating standards governing the arrest, search, seizure, detention, confinement, imprisonment and/or prosecution; in harassing, abusing and/or assaulting, this plaintiff; in failing to act within the color and/or scope of the law; in usurping authority; in failing to act with proper justification and/or authority; in authorizing, directing, permitting, condoning, and/or sanctioning the acts and/or conduct of defendants agents, servants and/or employees and/or police officers and other personnel; in the careless, reckless and/or negligent and/or willful and/or intentional disregard for the rights of others, more particularly this plaintiff; in failing to take reasonable and proper precautions to prevent the occurrence complained of herein; in causing, permitting and/or allowing to the conditions and occurrence complained of; and these defendants were otherwise reckless, careless and negligent.

34. That as a result of the aforesaid conduct, acts, carelessness, recklessness and/or negligence of the defendants, the plaintiff was caused to sustain injuries and damages, including, among other things, to be injured in mind and body, still suffers, and will continue to suffer, great physical and emotional pain and anguish; was caused to sustain injuries to his wrists; was caused to suffer pain in his wrists, hands and arms; was caused to be subjected to great indignities, humiliation and ridicule; was caused to be greatly injured in his credit reputation and circumstances; was caused to suffer impairments to his health, safety and wellbeing; was caused to be rendered sick, sore, lame and disabled; was caused to sustain severe pain and suffering; was caused to suffer emotional distress, mental anguish and anxiety; was caused to suffer a loss of

freedom; was caused to be jailed and confined; was caused to suffer a deprivation and/or the loss of basic guaranteed constitutional rights and/or freedoms; was caused to be a victim of discrimination in violation of his guaranteed constitutional rights and/or freedoms; was caused to be a victim of unconstitutional state and/or governmental action in violation of his guaranteed constitutional rights and/or freedoms; was caused to be subjected to the use of undue and/or excessive force; was caused to be detained, handcuffed, arrested, confined and jailed without proper cause; was caused to suffer the loss of basic human needs while confined, detained and/or jailed while under the defendants exclusive control and or custody; was caused to be injured physically and mentally; was caused to be deprived of his basic guaranteed constitutional rights and/or freedoms; was caused to suffer great emotional distress and anguish, and continues to be so caused; has been caused to suffer injury and damage to his reputation, standing and character, and continues to be so caused; was caused to have his person and property to be improperly seized; was caused to be prevented from enjoying, performing and transacting his daily activities, affairs and business; was caused to be improperly deprived of his freedom; was caused to be deprived of his civil rights and constitutional freedoms; was caused to be restrained, immobilized and jailed; was caused to suffer discrimination and to be profiled in a discriminate manner; was caused to be deprived of his rights as guaranteed under 42 U.S.C. § 1983 et. seq.; was caused to be harassed; and was caused to incur expenses, other and damages, all of which are permanent in nature and continuing into the future.

35. That the aforesaid occurrence, false arrest, and imprisonment, false and malicious prosecution, and injuries of the plaintiff, was caused wholly and solely by reason of the conduct and/or negligence of the defendants without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

36. By reason of the foregoing, the defendants are jointly and severally liable pursuant to the exceptions set forth in Article 16 of the CPLR.

37. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION

38. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", and "16" through "36" inclusive, with the same force and effect as if more fully set forth at length herein.

39. That commencing on July 3, 2021 and prior and subsequent thereto, the defendants, by and through their agencies, agents, servants and/or employees and police officers within the scope of their employment and under defendant's color of authority negligently, carelessly, recklessly, falsely, and maliciously did cause, permit, allow, create, and instigate the prosecution and continued prosecution of plaintiff ANGEL CORRETJER with deliberate indifference.

40. That at all times relevant, plaintiff was wholly innocent, and was forced by defendants to be falsely accused, detained, jailed, confined, imprisoned, charged, and prosecuted.

41. The aforesaid conduct and acts were committed by the defendants, agencies, agents, servants and/or employees and police officers, and in their course and general scope of their employment with defendants CITY and NYPD, in pursuance of the authority was acting or attempting to act in the interests of the defendants CITY and NYPD, and under the color of the authority of and/or instruction of the defendants CITY and NYPD.

42. That at all times relevant, plaintiff was aware of defendants' improper conduct, accusations and violation and depravation of his constitutional and civil rights and of his improper and false detention, arrest and prosecution thereby causing him to experience intense and unnecessary fears, anguish, distress and anxiety for his health, safety, life, well-being and freedoms.

43. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

44. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

45. By reason of the foregoing, the defendants are jointly and severally liable.

46. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION

47. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", and "39" through "45" inclusive, with the same force and effect as if more fully set forth at length herein.

48. That the defendants, by and through their agencies, agents, servants and/or employees and police officers within the scope of their employment with and under the color of authority of defendants CITY and NYPD did negligently use excessive and/or unnecessary force upon the plaintiff ANGEL CORRETJER.

49. The aforesaid occurrence and injuries sustained by Plaintiff ANGEL CORRETJER were caused by the recklessness, carelessness and negligence of the defendants, in the use of excessive and/or unnecessary force upon the plaintiff ANGEL CORRETJER.

50. The aforesaid conduct and acts were committed by the defendants, agencies, agents, servants and/or employees and police officers, and in their course and general scope of their employment with defendants CITY and NYPD, in pursuance of the authority was acting or attempting to act in the interests of the defendants CITY and NYPD, and under the color of the authority of and/or instruction of the defendants CITY and NYPD.

51. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

52. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

53. By reason of the foregoing, the defendants are jointly and severally liable.

54. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION

55. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", "39" through "45" and "48" through "53" inclusive, with the same force and effect as if more fully set forth at length herein.

56. That the defendants, their agencies, agents, servants and/or employees and police officers engaged in a course of conduct having no justification and/or excuse and with malice, with the specific intent to cause plaintiff ANGEL CORRETJER to suffer both emotionally and physically.

57. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries as aforesaid.

58. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

59. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

60. By reason of the foregoing, the defendants are jointly and severally liable.

61. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A FIFTH CAUSE OF ACTION

62. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", "39" through "45" "48" through "53" and "56" through "60", inclusive, with the same force and effect as if more fully set forth at length herein.

63. That the aforesaid occurrence was caused by the carelessness, recklessness and negligence of defendants their agencies, agents, servants and/or employees and police officers in

the employment, hiring, screening, inspection, management, control, review, retention, training and/or supervision of their agencies, agents, servants and/or employees and police officers.

64. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

65. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

66. By reason of the foregoing, the defendants are jointly and severally liable.

67. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SIXTH CAUSE OF ACTION

68. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", "39" through "45" "48" through "53", "56" through "60", and "63" through "66", inclusive, with the same force and effect as if more fully set forth at length herein.

69. That the defendants, by and through their agencies, agents, servants and/or employees and police officers were aware or should have been aware of the unsafe conditions complained of herein.

70. That the conduct and the acts and/or omissions of the defendants, their agencies and/or their agents, servants and employees, and police officers were wanton, reckless and in total

disregard for the health, safety and welfare of the public at large, and, more particularly the plaintiff ANGEL CORRETJER, and such acts and/or omissions constituted gross negligence on behalf of the defendants.

71. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

72. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

73. By reason of the foregoing, the defendants are jointly and severally liable.

74. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

75. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", "39" through "45" "48" through "53", "56" through "60", "63" through "66", and "69" through "73", inclusive, with the same force and effect as if more fully set forth at length herein.

76. Defendants their agencies, agents, servants and/or employees, and police officers by virtue of their conduct, acts and/or omissions, including but not limited to the arrest, seizure, assault, battery, imprisonment, confinement, detention and/or prosecution of the plaintiff and/or their use of excessive and/or unnecessary force upon plaintiff and/or placed plaintiff in imminent fear of physical contact, assault and/or harm or abuse, during the course of their contact, custody,

detention, arrest, search, seizure imprisonment and/or prosecution, of plaintiff, violated statutes, rules and regulations, inter alia, the Constitution of The United States of America, USC and The Constitution of the State of New York, including, but not limited to, the 42 U.S.C. Sec. 1983, et. seq., among others.

77. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

78. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

79. By reason of the foregoing, the defendants are jointly and severally liable.

80. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR AN EIGHTH CAUSE OF ACTION

81. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", "39" through "45" "48" through "53", "56" through "60", "63" through "66", "69" through "73", and "76" through "79", inclusive, with the same force and effect as if more fully set forth at length herein.

82. Commencing on or about the 3rd day of July, 2021, and prior and subsequent thereto, defendants, their agencies, agents, servants and/or employees, and police officers during defendants' seizure, arrest, detention, confinement, imprisonment and/or prosecution of the plaintiff, defendants, their agencies, agents, servants and/or employees, and police officers

recklessly, carelessly and negligently and/or wantonly and/or intentionally, searched, seized, and/or assaulted and/or employed the use of excessive force, and placed plaintiff in imminent fear of physical contact, assault and/or harm or abuse.

83. The aforesaid conduct and actions were committed by defendants, by and through their agencies and/or their agents, servants and/or employees, in the course and general scope of their employment, contract and/or authority with defendants CITY and NYPD.

84. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

85. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

86. By reason of the foregoing, the defendants are jointly and severally liable.

87. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

AS AND FOR A NINTH CAUSE OF ACTION

88. Plaintiff, repeats, reiterates and realleges each and every allegation set forth in the paragraphs of this Complaint numbered "1" through "14", "16" through "36", "39" through "45" "48" through "53", "56" through "60", "63" through "66", "69" through "73", "76" through "79", and "82" through "86" inclusive, with the same force and effect as if more fully set forth at length herein.

89. Commencing on or about the 3rd day of July 2021, and prior and subsequent thereto, the defendants, their agencies, agents, servants and/or employees and police officers were acting within the scope of their employment, authority, and office as part of their regular and official employment as employees for the defendants CITY and NYPD, and in pursuance of the authority was acting or attempting to act in the interests of the defendants CITY and NYPD, and under the color of the authority of and/or instruction of the defendants CITY and NYPD.

90. Commencing on or about the 3rd day of July 2021, and prior and subsequent thereto, as plaintiff ANGEL CORRETJER was lawfully and properly enjoying his rights as a citizen of the United States of America, defendants, their agencies, agents, servants and/or employees and police officers who having the real and apparent ability to cause imminent harmful and offensive injury, and the power and authority to warrant for the arrest, seizure, detention, prosecution and imprisonment of the plaintiff, did so threaten these acts upon the plaintiff, and did so cause the plaintiff to be arrested, detained, seized, confined, prosecuted and/or imprisoned in violation of his constitutional and civil rights, including but not limited to those set forth in The Constitution of The United States, particularly 42 U.S.C .Sec 1983, and The Constitution of The State of New York.

91. Commencing on or about the 3rd day of July, 2021, and prior and subsequent thereto, as plaintiff ANGEL CORRETJER was lawfully and properly enjoying his rights as a citizen of the United States of America, defendants, their agencies, agents, servants and/or employees and police officers recklessly, carelessly and negligently and/or wantonly and/or intentionally, searched, seized and/or assaulted plaintiff and/or employed the use of excessive and/or unnecessary force, and/or placed plaintiff in imminent fear of physical contact, assault and/or harm or abuse, during the course of their contact, custody, detention, arrest, seizure,

imprisonment and/or prosecution of the plaintiff ANGEL CORRETJER, in violation of his constitutional and civil rights, including but not limited to those set forth in The Constitution of The United States, particularly 42 U.S.C. Sec 1983, and The Constitution of The State of New York.

92. Defendants, their agencies, agents, servants and/or employees and police officers falsely and improperly caused plaintiff to be arrested, detained, searched, seized, imprisoned and prosecuted for an extended period of time, depriving him of rights and liberties as set forth in the Constitutions of the United States of America and of the State of New York, without any conduct on the part of the plaintiff to so warrant.

93. That all of the acts and/or conduct of defendants, their agencies, agents, servants and/or employees and police officers, were committed with the intention to cause physical, emotional and economic damage and injury to the plaintiff ANGEL CORRETJER;

94. That defendants, their agencies, agents, servants and/or employees and police officers, arrested, detained, searched, seized, imprisoned and prosecuted plaintiff, against his choice.

95. That plaintiff was at all times conscious of his arrest, detention, search, seizure, imprisonment and prosecution.

96. That defendants' arrest, detention, search, seizure, imprisonment and prosecution were false and without proper legal cause or justification, and were not otherwise privileged.

97. As a result of the acts and/or conduct of defendants, their agencies, agents, servants and/or employees and police officers, plaintiff was falsely, maliciously and improperly arrested, detained, searched, seized, imprisoned and prosecuted in violation of his constitutional and civil

rights, as guaranteed in the Constitution of the United States of America, particularly 42 U.S.C. Sec 1983, and The Constitution of The State of New York.

98. That, defendants, their agencies, agents, servants and/or employees and police officers, and each of them separately, and in concert, acted under color and pretense of law, and the defendants by and through defendants, their agencies, agents, servants and/or employees and police officers, separately and in concert, engaged in the reckless, careless and negligent conduct to the injury and detriment of the plaintiff ANGEL CORRETJER, and deprived him of the rights, privileges and immunities secured to him by to the Constitution of the United States, including its First, Fourth, Sixth and Fourteenth Amendments, the laws of the United States, the Constitution of the State of New York and local laws.

99. That, defendants, their agencies, agents, servants and/or employees and police officers, acting under color of law, have subjected plaintiff and other persons to a pattern of conduct consisting of false arrest, detention, search, imprisonment and prosecution and that defendants, did not confer due process upon the plaintiff, and denied him of the rights, privileges and immunities guaranteed to citizens of the United States of America by the Constitution of the United States of America and the Constitution of the State of New York.

100. The conduct and acts of defendants, their agencies, agents, servants and/or employees and police officers is a systematic pattern of conduct consisting of a large number of individual acts of violations of civil rights of citizens, and this plaintiff, committed by defendants their agencies, agents, servants and/or employees and police officers acting in concert with persons unknown to the plaintiff and under color of law, and said acts, while carried out under color of law, within the scope and authority of their office and employment, having no justification or excuse in law and are instead reckless, careless and negligent, unrelated to any activity in which

they may properly, appropriately and legally engage in the course of protecting persons or property or ensuring civil order.

101. That, defendants knew or should have known of the improper, unlawful and/or unconstitutional pattern of conduct existing, and being effectuated by their agencies, agents, servants and/or employees and police officers, defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their agencies, agents, servants and/or employees and police officers.

102. That as a result of the conduct and/or acts, of defendants, their agencies, agents, servants and/or employees and police officers the plaintiff was deprived of his constitutional and civil rights, as set forth in the Constitution of the United States of America, particularly 42 U.S.C. Sec 1983, and The Constitution of The State of New York including among others, Freedom from assault to his person; Freedom from battery to his person; Freedom from illegal search and seizure; Freedom from false arrest; Freedom from malicious prosecution; Freedom from the use of excessive force; Freedom from unlawful imprisonment; Freedom from the lack of due process; and Freedom from loss of his liberty; The right of to be informed of the nature and cause of the accusation; The right of not to be deprived of life, liberty or property without due process of law; The right to equal protection of the laws and; The right of the people to be secure in their persons, houses, papers and effects, against unreasonable searches and seizure, among other constitutional rights and freedoms as guaranteed under Constitution of the United States of America, and The Constitution of the State of New York.

103. The aforesaid conduct and actions were committed by defendants, by and through their agencies and/or their agents, servants and/or employees, in the course and general scope of their employment, contract and/or authority with defendants.

104. That by reason of the aforesaid acts and/or omissions and/or conduct and/or use of excessive and/or unnecessary force, and/or assault, battery, violations of the law, and/or violation of civil rights and constitutional rights caused by the defendants, their agencies, agents, servants and/or employees and police officers, who conspired together to enter into a nefarious scheme to wrongfully deprive the plaintiff, and compel him to abandon his rights and privileges as provided to him in the Constitution of the United States of America, and the Constitution of the State of New York, and laws thereto, the defendants violated 42 U.S.C. Sec. 1983 in that the defendants, by and through their agencies, agents, servants and/or employees and police officers, acted as persons who under color of any statute, ordinances, regulation, custom or usage of the State of New York, subjected or caused to be subjected, a citizen of the United States of America, or other persons within the jurisdiction, particularly the plaintiff, thereof to be deprived of his rights, privileges or immunities received by the Constitution and laws of the United States of America and of the State of New York; was subjected to great indignities and humiliation, and pain and distress of mind and body and was held up to scorn and ridicule, was caused to be assaulted and/or placed in imminent fear of physical contact, assault and/or harm or abuse, was caused to be verbally and emotionally abused; was caused to sustain emotional distress, was caused to sustain severe and permanent personal injuries, and otherwise injured in his character and reputation, was caused to be detained, confined and/or jailed against his volition, was improperly, wrongfully and/or maliciously prosecuted, was prevented from attending his usual business and vocation, was caused to loss earnings, income and/or opportunities for job promotion, advancement and/or

increases in salary and/or benefits, and was injured in his reputation in the community and the acts aforementioned were committed with the aim of injuring and damaging plaintiff.

105. As a result of the acts and conduct of the defendants, plaintiff ANGEL CORRETJER, was caused to sustain severe and permanent injuries and damages, as aforesaid.

106. That aforesaid occurrence was caused solely wholly and solely by reason of the conduct and/or negligence of the defendants, without any conduct, fault or negligence on the part of the plaintiff contributing thereto.

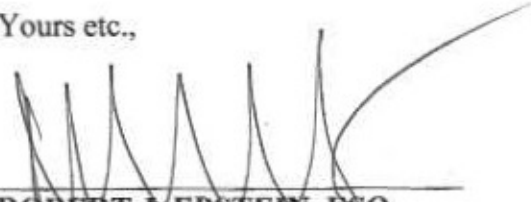
107. By reason of the foregoing, the defendants are jointly and severally liable.

108. By reason of the foregoing, plaintiff is entitled to recover all of his damages from the defendants pursuant to CPLR 3017(c), the amount of which exceeds the jurisdictional limits of all lower Courts.

WHEREFORE, plaintiff demands judgment on First, Second, Third, Fourth, Fifth, Sixth, Seventh Eighth and Ninth Causes against defendants, pursuant to CPLR 3017(c) for compensatory and punitive damages together with the costs, disbursements and attorneys fees of this action and demands that he be awarded all damages and relief to which he is entitled.

Dated: New York, New York
June 28, 2022

Yours etc.,



ROBERT J. EPSTEIN, ESQ.

Attorney for the Plaintiff
41 Bedford Street, Suite 4C
New York, New York 10014
(212) 240-9470

ATTORNEY'S VERIFICATION

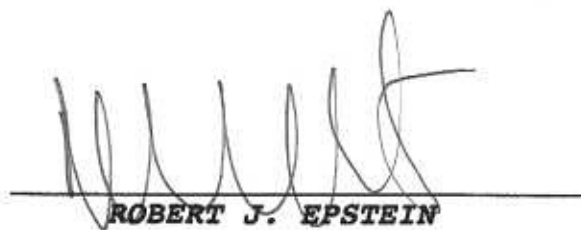
ROBERT J. EPSTEIN, ESQ., attorney for the plaintiff in the within action, duly admitted to practice law in the Courts of the State of New York, affirms the following statements to be true under the penalties of perjury, pursuant to Rule 2106 of the CPLR:

That affirmant has read the foregoing COMPLAINT and knows the contents thereof; that the same is true to affirmant's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters affirmant believes them to be true.

Affirmant further states that the source of affirmant's information and the grounds of affirmant's belief are derived from the file maintained in the normal course of business of the attorneys for the plaintiff.

Affirmant further states that the reason this verification is not made by the plaintiff is that the plaintiff is not within the County of New York, which is the County where the attorneys for the plaintiff herein maintain their offices.

Dated: New York, New York
June 28, 2022



ROBERT J. EPSTEIN

Index No

Year 2022

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

ANGEL CORRETJER,

Plaintiff(s),

- against -

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER KEY
MATIASCASTILLO (shield #21571) and JOHN/JANE
DOE'S 1-4 (names being fictitious as they are presently
unknown who are intended to be other NYPD police
officers responsible for Bronx County arrest #B2167315)

Defendant(s).

VERIFIED COMPLAINT

ROBERT J. EPSTEIN, ESQ.

Attorney for Plaintiff(s)

Office and Post Office Address, Telephone

41 Bedford Street, Suite 4C

New York, New York 10014

(212) 240-9470

TO:
